

Smt. Pushpa Soni vs Daulat Ram Soni on 19 December, 2024

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2024:CGHC

HIGH COURT OF CHHATTISGARH AT BILASPUR

TPC No. 201 of 2024

1 - Smt. Pushpa Soni W/o Daulat Ram Soni Aged About 29 Years R/o (Current Address) Gram Patrapali House No.149, Ward No.11 Schoolpara Kotliya P. Chakrdhar Nagar Tehsil And District - Raigarh (C.G.)

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versus

1 - Daulat Ram Soni S/o Late Shri Anand Ram Soni Aged About 30 Years R/o Kailash Nagar Ram Mandir Area Balco P.S. Balco Nagar Korba Tahsil And Korba (C.G.) Mob. 7470934640

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For Petitioner : Mr. Ankit Singh, Advocate

For Respondent : Mr. Lalit Jangde, Advocate.

SB: Hon'ble Shri Parth Prateem Sahu, Judge
ORDER ON BOARD

19/12/2024

1. Petitioner-wife has filed this petition under Section 24 of the Code of Civil Procedure, 1908 seeking transfer of Civil Suit No.37A/2024 from Family Court, Korba to Family Court, Raigarh.

2. Learned counsel for the petitioner submits that earlier petitioner has filed an application under Section 125 of CrPC and the same was allowed vide order dated 3.10.2024. Petitioner thereafter moved an application under Section 125 (3) of CrPC, which is pending Digitally NISHA signed consideration. He contended that petitioner is a lady residing with her by DUBEY NISHA DUBEY parents in village Patrapali, there is no direct connectivity from her place of residence to Korba and she has to first come to Raigarh or any other place and thereafter only she could get public connivance for Korba. There is distance of about 30 km from the place from where she can get public connivance. She is a lady and there is no other person to accompany her. She is not having proper source of income, is dependent upon her parents. The amount of maintenance granted to her is also not being deposited by respondent.

3. Learned counsel for the respondent opposing submission made by counsel for respondent, would submit that it is the respondent, moved an application under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights before the learned Principal Judge, Family Court, Korba, Chhattisgarh. He still wants to make relation good between the two. Next date fixed before the learned Family Court, Korba is 2nd January, 2025. Hence, it is prayed that present petition be dismissed.

4. Heard learned counsel for parties and perused the documents placed on record.

5. The proceeding filed by the respondent is under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights, there may be some dispute between the husband and the wife, which made the petitioner to reside separately as of now for which an application under Section 9 of the Hindu Marriage Act, 1955 is filed by respondent which is pending before the Family Court, Korba.

6. In the family dispute of like nature where one of the parties has filed an application for restitution of conjugal rights, in the proceedings pending before the Court presence of parties is important and necessary. Application under Section 125 of CrPC filed by petitioner is pending in Family Court at Raigarh.

7. Convenience of the wife to attend the case is also one of the considerations at the time of deciding transfer petition. Hon'ble Supreme Court in case of N.C.V. Aishwarya vs. A.S. Saravana Karthik reported in 2022 SCC Online SC 1199, has held as under:

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio-economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. Hon'ble Supreme Court in the matter of Sumita Singh vs. Kumar Sanjay and another, reported in (2001) 10 SCC 41 has observed that if husband files suit against wife, then convenience of wife must be looked into. Hon'ble Supreme Court in the matter of Rajani Kishor Pardeshi vs. Kishore Babulal Pardeshi, reported in (2005) 12 SCC 237 has observed that the convenience of wife is to be preferred over the convenience of the husband.

9. Considering the facts and circumstances of the case, in light of the law laid down by the Hon'ble Supreme Court, in the opinion of this Court, this is the fit case for transfer of civil suit, as prayed for by petitioner/wife.

10. Accordingly, this transfer petition is allowed. It is ordered that Civil Suit No.37A/2024 (Daulat Ram Soni vs. Smt. Pushpa Soni), pending before learned Principal Judge, Family Court Korba, District Korba be transferred to the court of learned Principal Judge, Family Court, Raigarh, District Raigarh (C.G.).

11. The Family Court, Korba, District Korba is directed to transfer the record of the above case to the Family Court, Raigarh forthwith. Parties are directed to appear before the Family Court, Raigarh on 14.01.2025.

12. The learned Family Court, Raigarh will make all endeavours to conclude the proceedings of the case at the earliest subject to co-operation of the parties.

13. Registry of this Court is directed to send the copy of order to the Family Court, Korba, District Korba for necessary action.

Sd/-

(Parth Prateem Sahu) JUDGE Nisha